

Participation Agreement Turkey

**Agreement # 4998CM0379
PA# CW3647566**

EFFECTIVE DATE OF THIS PARTICIPATION AGREEMENT ("PA"): 10.07.2023

This PA between IBM (International Business Machines) Turk Limited Sirketi ("Buyer") and George P Johnson Company ("Supplier") adopts and incorporates by reference all of the terms and conditions of the Base Agreement # 4998CM0379 in effect as of the date hereof ("Base Agreement"). This PA automatically incorporates any future amendments to the Base Agreement referenced in this PA, and will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA unless otherwise agreed to in writing by the parties to this PA.

The parties to this PA agree that purchases and sales of the Deliverables, Products or Services, as defined in the Base Agreement, will be conducted in accordance with, and be subject to, the terms and conditions of this PA, the Base Agreement and any applicable Work Authorizations.

AMENDMENTS: The following terms and conditions amend provisions of the Base Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.0 Prior Communications and Order of Precedence

In the event of any conflict in the terms of the Base Agreement, the order of precedence will be: (i) the quantity, payment and delivery terms of the relevant WA; (ii) the relevant SOW; (iii) this PA; (iv) the Base Agreement; and (v) the remaining terms of the relevant WA.

2.0 Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action

The following provisions are added to Subsection entitled "**Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action**" of the referenced Base Agreement.

Laws of Republic of Turkey will apply and İstanbul Central Courts and Enforcement Offices will have exclusive jurisdiction for the resolution of any dispute related to or in connection with this Agreement. Any probable changes in the laws adopted after the date of execution of this Agreement shall be deemed to have amended the provisions hereof accordingly. If new law provisions introduce substantially different conditions than the provisions of the Agreement, the parties may agree on the amendment of present terms and/or conditions in accordance with such new law provisions. Buyer will not be responsible for any loss that may be sustained from the date of any applicable new law provisions to the date of the parties' agreement on the amendment of terms and/or conditions, or any loss beyond its own control.

3.0 Ongoing Warranties

In addition to the representations and warranties in the Section titled "**Ongoing Warranties**" in the Base Agreement, Supplier represents and warrants:

1. it is familiar with all local laws and regulations pertaining to bribery, corruption and prohibited business practices and has not and will not partake in any actions in relation to the transactions contemplated herein in violation of such laws;
2. it and its Affiliates has not and will not offer, promise or make or agree to make payments or gifts (of money or anything of value) directly or indirectly to anyone for the purpose of influencing or inducing anyone to influence decisions in favor of Buyer;
3. Supplier will comply with applicable export and import laws and regulations, including those of the United States that prohibit or limit export for certain uses or to certain end users.

4.0 Intellectual Property

The Following is added to the Section entitled 'Intellectual Property' ;

Supplier agrees and warrants that in order to comply with the requirements of this Section, Supplier will fulfill all the applicable legal requirements and carry out all the applicable legal, administrative or other procedures.

5.0 Developed Works

All Developed Works belong exclusively to Buyer or Customer and are works made for hire. If any Developed Works are not considered works made for hire owned by operation of law, Supplier assigns the ownership of copyrights in such works to Buyer or Customer.

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The above wording in the base Agreement in relation with developed works is replaced with the following ;

‘All Developed Works belong exclusively to Buyer or Customer. If any Developed Works are not considered owned by the Buyer or Customer by operation of law, Supplier assigns the ownership of copyrights in such works to Buyer or Customer’.

6.0 Supplier and Supplier Personnel

The following is added to the section ‘Supplier and Supplier Personnel’:

Supplier represents that the performance of its obligations shall be carried out by lawfully employed personnel in accordance with applicable Labor Regulations. Any person who participates, on behalf of the Supplier, in the performance of Services, shall remain under the Supplier's authority, direction and supervision, and as such will have the status of employee of the Supplier and therefore shall have no entitlement at any time to become an employee or agent of the Buyer. The Buyer shall not, as a result of this contract, incur any liability or obligation with respect to the persons who are working on behalf of the Supplier.

Supplier shall be solely responsible for and shall hold Buyer harmless in respect of any claim in relation with employment. Supplier shall hold harmless, defend and indemnify Buyer against all liabilities, costs, demands, damages, expenses and legal fees raised against Buyer or otherwise by Supplier Personnel (including anyone working on behalf of the Supplier) or a third person arising out of or in any way connected with the employment relationship, including but not limited to redundancy, unfair dismissal or otherwise howsoever arising. In this respect, Buyer is entitled to recourse to the Supplier in the event of or as a result of such claims or law-suits.

7.0 Communications

The following replaces the Sub-section entitled “**Communications**” of the Base Agreement

Communications and Written Notice

All communications between the parties regarding this Agreement will be conducted in writing (including electronic transmission to the extent permitted by law) through the Parties’ representatives as specified in the relevant SOW and/or WA.

All the notices sent between the parties must be in writing and shall be sent via notary public to the other party's address cited in this Agreement. If address changes are not notified, the notices sent to the contractual address will have the effect of duly made notice.

8.0 Counterparts

The following is added to the last sentence of the subsection Counterparts : “To the extent permitted by local law”.

9.0 Force Majeure

The wording “excluding labor disputes” is deleted from the first part of the subsection entitled “Force Majeure” and the following is added :

The following provisions are added to the Subsection entitled “Force Majeure” of the referenced Base Agreement: Event of force majeure means any of the following which occurs beyond the control of either party without negligence or fault: (1) Act of God or public enemy, fire, explosion, perils of the sea, flood, drought, war, riot, sabotage, accident, embargo; (2) interruption of or delay in transportation, inadequacy or shortage or failure of supply of products, raw materials, or equipment breakdown, Strike and Lock-out ; (3) compliance by either party with any order of a Court of competent jurisdiction or action, direction or request of any governmental officer, department, agency, authority or committee; or (4) without limiting the foregoing circumstances, any circumstances of like or different character beyond the reasonable control of either party whether in any case the circumstances now exist or hereafter arise.

10.0 Evidences

The commercial books of Buyer and all the records contained in said books, including computer and electronic records shall constitute final absolute and conclusive unilateral evidence in any dispute that may arise from the performance of this agreement, under article 287 of Civil Procedural Law.

11.0 Data Privacy

Where Buyer is incorporated in a country within the European Economic Area and Supplier will be processing data on behalf of Buyer, the following additional section must be used in the PA:

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In addition to the parties obligations under the relevant Subsection of the referenced Base Agreement or any disclosure/nondisclosure agreements, where under this PA Buyer discloses information relating to an identified or identifiable individual, partnership, corporation or other entity ('Personal Data') Supplier will apply appropriate technical and organizational security measures to protect Personal Data against destruction, loss, alteration, unauthorized disclosure or access, and against all other unlawful forms of processing (including, but not limited to, ensuring the reliability of any personnel who have access to the Personal Data). Supplier represents and warrants: (i) that it will comply with applicable data protection laws and regulations (including any requirement for notification to, or registration with, country data protection authorities), and (ii) that it will only access, use, manage, disclose to third parties, transfer overseas or otherwise process Personal Data in accordance with Buyer's instructions. Buyer generally instructs Supplier to process Personal Data to the extent necessary to perform this PA. Supplier will promptly assist Buyer in responding to requests to allow access to, correct, block, suppress or delete any Personal Data, including providing Buyer with a copy of all relevant Personal Data in tangible form. Supplier will not transfer any Personal Data out of any country having data protection laws and/or regulations restricting transfers of Personal Data unless that transfer is unavoidable in order for Supplier to perform its obligations under this PA, or where Buyer consents to the transfer in writing. Buyer may, upon reasonable notice, audit and verify Supplier's compliance with the provisions of this Section. On termination of this PA Supplier shall, at Buyer's request, promptly return or erase all Personal Data stored in its internal systems.

12.0 Survival

In the event the Base Agreement is terminated, the terms and conditions of the Base Agreement incorporated by reference herein shall survive such termination and remain in effect for purposes of this PA only.

13.0 Compliance with Environmental Laws

Supplier is responsible for complying with all Environmental Laws that restrict, regulate or otherwise govern Buyer's direct or indirect import, export, sale or other distribution of a product that is or contains Supplier's Products or Deliverables. "Environmental Laws" means those laws, rules and regulations of the United States (local, state and federal), Canada, European Union (EU), and other jurisdiction, country or country group that relate to environmental matters, including without limitation material restrictions, material bans, product labeling, availability of product environmental information, energy efficiency, end-of-life product take back, packaging, batteries and other similar requirements, including, but not limited to, for example, Regulation EC/1907/2006 concerning the Registration, Evaluation, Authorization and Restriction of Chemicals (REACH), those laws of the European Union member states that implement Directive 2002/96/EC on waste electrical and electronic equipment (WEEE) and Directive 2002/95/EC regarding restriction of the use of certain hazardous substances (RoHS) in electrical and electronic equipment., **relevant laws and regulations in effect in Republic of Turkey such as the regulation related to the control of Waste Electric and Electronic Goods, regulation related to the control of Waste Batteries and Accumulators, regulation related to the control of Waste Packages along with the other relevant laws and regulations in effect and to be in effect.**

As requested by Buyer, Supplier shall provide evidence of compliance with the legal requirements resulting from its obligations above (including, but not limited to labeling, information, registration, end-of-life product take back and recycling obligations, absence of restricted or banned substances, and other similar requirements) by suitable means, and shall assist Buyer with any reporting obligations related to a product which is or contains Supplier's Products or Deliverables. Supplier certifies that the information and data provided in accordance with the foregoing, as well as any other information or data provided in accordance with any applicable IBM specifications is accurate, true and complete.

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ACCEPTED AND AGREED TO:		ACCEPTED AND AGREED TO:	
By: IBM (International Business Machines) Turk Limited Sirketi		By: George P Johnson FZ LLC	
Buyer Signature	Date	Supplier Signature	Date
Printed Name: Krisztina Velkei		Printed Name:	
Title and Organisation: Sourcing Buyer – Global Procurement		Title and Organisation:	
Buyer Address: Buyukdere Caddesi Levent Istanbul TR 34330		Supplier Address: Office 217 Loft Offices Building 2 Dubai 0000 AE, DU	